

THE DUBAI INTERNATIONAL
FINANCIAL CENTRE COURTS

Claim No. ARB-021-2026

IN THE COURT OF FIRST
INSTANCE

IN AN ARBITRATION CLAIM
AND IN THE ARBITRATION

BETWEEN:

Sibuglemet Trading Pte Ltd

Claimant/ Claimant in
arbitration

-and-

POSCO

Defendant/ Respondent in
arbitration

CLAIMANT'S COST SUBMISSIONS

10 April 2026

SINGULARITY
LEGAL

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I. INTRODUCTION

1. The Claimant files these cost submissions (“**Cost Submissions**”) pursuant to [6] of the Order of H.E. Justice Mark Pelling dated 3 April 2026 (“**Enforcement Order**”). The Enforcement Order arises out of the Claimant’s *ex parte* Arbitration Claim seeking to enforce the ICC final award dated 18 September 2025. The costs incurred by the Claimant relate only to the (i) legal fees for work done on the Arbitration Claim and these Cost Submissions, and (ii) disbursements.

II. SUMMARY OF THE CLAIMANT’S COSTS OF THE PROCEEDINGS

Particulars	Rate (US\$)	Time spent	Total fees (US\$)
LEGAL FEES			
<i>Work Done on Documents (Arbitration Claim)</i>			
Prateek Bagaria (Partner)	575	2.75	1581.25
Natasha Kavalakkat (Managing Counsel)	450	10.42	4687.50
Mihir Govande (Trainee)	195	46.83	9132.50
<i>Discount provided</i>			(- 401.25)
Total		60	15,000
<i>Work Done on Documents (Cost Submissions)</i>			
Prateek Bagaria (Partner)	575	0.5	287.50
Natasha Kavalakkat (Managing Counsel)	450	1.5	675
Mihir Govande (Trainee)	195	5	975
Total		7	1,937.50
DISBURSEMENTS			
Claim filing fee (50% of the total payable fee)			36,380.96
Grand Total			53,318.46

III. THE CLAIMANT’S COSTS OUGHT TO BE GRANTED IN FULL

2. Of the costs sought, **US\$ 36,380.96** are disbursements incurred for the filing fee and must be granted in full. The remaining **US\$ 16,937.50** has been incurred as legal fees.
3. **First**, the hourly rates applied for legal fees are reasonable. The indicative rates set out in the *Registrar’s Direction No. 1 of 2023* should be taken as guidance when considering the rates for assessing costs. A comparison between the indicative rates and Singularity’s rates is as follows:

Fee Earner	Position	Experience	Indicative Rate (US\$)	Singularity's Rate (US\$)	Percentage reduced (%)
Prateek Bagaria	Partner	15	1020	575	43.62
Natasha Kavalakkat	Managing Counsel	6	809	450	44.37
Mihir Govande	Trainee	2	651	195	70.04

4. The hourly rates for Singularity are clearly significantly reduced from the applicable indicative hourly rates and, therefore, reasonable.
5. **Second**, the total legal fees claimed for the Arbitration Claim are **US\$ 15,000**. This figure is arrived at on a time-spent basis, upon which a discount of US\$ 401.25 has been applied.
6. The work done towards filing the Arbitration Claim comprised: (i) preparing the Claim Form; (ii) compiling and assisting with drafting of one witness statement of Mr Andrei Tarasko of 9 pages; (iii) collating and preparing one bundle of documents of 184 pages; and (iv) preparing one draft Order (in Arabic and English), pursuant to the requirements of the RDC 43.66 and 43.67. Singularity worked for only 60 hours in total, which is a proportionate amount of time spent on an application of this nature.
7. Further, the time spent was allocated judiciously such that nearly 96% of the time spent (57.25 hours) was by fee earners with up to 6 years of experience, with minimal supervision by the partner, having spent just 2.75 hours. The costs are, therefore, reasonable and proportionate to the work undertaken.
8. **Third**, the legal fees sought for the Cost Submissions are **US\$ 1,937.50**. Having spent just 7 hours, once again allocated in a manner to minimise senior involvement, the total sum claimed is reasonable and proportionate.
9. Therefore, in these circumstances, where the sums claimed are already reasonable and proportionate, there is no scope or need for the Court to exercise any discretion to apply a discount on the sums claimed. By way of example, this Court in *F3O Shipbrokers v Vahana Marine Solutions* [2023] DIFC CFI 043, at [23], while assessing costs, took into account the above factor – namely, that the hourly rates were significantly discounted from the indicative rates, and that the total number of hours spent and the total sum claimed were proportionate. In finding so, the Court went on to award the claimant its full costs, without any reduction.

IV. CONCLUSION

10. In light of the above, the Claimant's costs sought are reasonable and proportionate and therefore ought to be awarded in full.

Counsel for the Claimant

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